

Softmax Privacy Policy

Softmax Inc. (“Softmax,” “we,” “our,” and/or “us”) values the privacy of individuals who use our websites, participate in our events, and make use of any of our related services (collectively, our “Services”). Our websites include Softmax.com. This privacy policy (the “Privacy Policy”) explains how we collect, use, and disclose information from users of our Services (“Users”). It applies to visitors of our website. By using our Services, you agree to the collection, use, disclosure, and procedures this Privacy Policy describes.

Information We Collect

We may collect a variety of personal information from or about you or your devices from various sources, as described below. In this Privacy Policy, “Personal Information” or “Information” means any information relating to an identified or identifiable individual. If you do not provide Personal Information when requested, you may not be able to benefit from our website or the Service, if that information is necessary to provide you with them or if we are legally required to collect it.

A. Information You Provide to Us.

Registration Information. When you sign up for our website, we ask you for Information such as your name, email address, phone number, website, team name, and institutional affiliation (if any). If you are a parent or guardian who is signing up on behalf of your minor child, we may collect additional Information from you, including your child’s name. If you register on behalf of a team, we may collect additional Information such as your team member’s names and email addresses. You may also choose to provide us with additional Information, such as your biographical Information and photograph.

Communications. If you contact us directly, we may receive additional Information about you, such as your name, email address, phone number, the contents of a message or attachments that you may send to us, and other Information you choose to provide. When we send you emails, we may use embedded pixels or other technologies to track Information about your receipt and interaction with our emails, such as whether and when you open them, whether you access any links included in our emails, how long you read our emails, whether you forward our emails and to whom, your Location Information (described below), and your Device Information (described below), to learn how to deliver a better customer experience and improve our Services.

Careers. If you decide that you wish to apply for a job with us, you may submit your contact Information and your resume online or via email. We will collect the Information you choose to provide on your resume, such as your education and employment experience. This Information may be collected and stored by a service provider on our behalf.

B. Information We Collect When You Use Our Services.

Location Information. When you use our Services, we may receive your location Information. For example, we may infer your location Information by using your IP address.

Device Information. We receive Information about the device and software you use to access our Services, including IP address, device type, device identifiers, web browser type and version, and operating system version.

Usage Information. We may automatically receive Information about your interactions with our Services, like the pages or other content you view, referrer Information (the website you visited before coming to our Services), and the dates and times of your visits.

Information from Cookies and Other Tracking Technologies. We and our third-party partners collect Information about your activities on our Services using cookies, pixel tags, SDKs, or other tracking technologies (collectively “Cookies”). Our third-party partners, such as analytics and security partners, may also use these technologies to collect Information about your online activities over time and across different services. We use the following Cookies on our Services:

- **Strictly Necessary Cookies:** Some Cookies are strictly necessary to make our Services available to you and you cannot use them without this type of Cookie. We use this Information to provide you with our Services, prevent misuse, and ensure our Services are working properly.
- **Functional Cookies:** These are used to recognize you when you return to our Services. This enables us to personalize our content for you, to provide you with a customized experience on our Services, and to remember your preferences and various settings (for example, your choice of language or region).

Cookie Name	Provider	Purpose	Expiry

- **Analytics or Performance Cookies:** We also use Cookies for analytics purposes to better understand how you use our Services, to measure the effectiveness of our customer communications, to diagnose and fix technology problems, and otherwise enhance our Services. We may use our own analytics Cookies or third-party analytics providers to collect and process certain data analytics on our behalf.

Cookie Name	Provider	Purpose	Expiry
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Google Analytics	google.com	Track usage to the website	2 years
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How We Use the Information We Collect

We use the Information we collect:

- To provide, maintain, improve, and enhance our Services;
- To train, develop, and improve the artificial intelligence, machine learning, and models that we use to support our Services;
- To understand and analyze how you use our Services and develop new products, services, features, and functionality;
- To communicate with you, provide you with updates and other Information relating to our Services, provide Information that you request, respond to comments and questions, and otherwise provide customer support;
- For marketing and advertising purposes, such as developing and providing promotional and advertising materials that may be relevant, valuable or otherwise of interest to you;
- To generate anonymized or aggregate data containing only de-identified, non-personal information that we may use for any lawful purposes such as to publish reports;
- To send you text messages;
- To facilitate transactions and payments;
- To find and prevent fraud and abuse, and respond to trust and safety issues that may arise;
- For compliance purposes, including enforcing our Terms of Service or other legal rights, or as may be required by applicable laws and regulations or requested by any judicial process or governmental agency; and
- For other purposes for which we provide specific notice at the time the Information is collected.

Our Legal Basis for Processing Personal Information

If you are located in the European Economic Area, Switzerland, or the United Kingdom (“Europe”), we only process your Personal Information where we have a legal basis to do so. The legal bases we rely on include:

- **Necessary to perform a contract.** We will process your Personal Information where it is necessary to give effect to a contract between you and us, for example, when you subscribe to our Service, or otherwise accept our Terms of Service.
- **Necessary for compliance with a legal obligation to which we are subject.** We may process your Personal Information where we are required to do so to comply with our legal obligations, for example, to comply with tax and accounting obligations or to comply with a search warrant or court order.
- **Necessary for a legitimate interest that we pursue.** Where we or a third party have a legitimate interest in processing your Personal Information, we may do so provided that our interest is not overridden by your rights and interests. We may rely on this legal basis to, for example, keep business records, respond to unsolicited communications from you, assert our legal rights, and obtain professional advice.
- **Consent.** We may also process your Personal Information on the basis of consent in some circumstances. For example, we may ask you to consent to our use of Cookies and similar technologies or to sign up to direct marketing. You may withdraw your consent at any time by contacting us.

How We Disclose the Information We Collect

Affiliates. We may disclose any Information we receive to our current or future affiliates for any of the purposes described in this Privacy Policy.

Vendors and Service Providers. We may disclose any Information we receive to vendors and service providers retained in connection with the provision of our Services.

Other Users. Your name, profile Information, and submissions will be viewable and searchable by other users. The content you post to the Services will be displayed on the Services and viewable by other users by default. We are not responsible for the other users' use of available Information, so you should carefully consider whether and what to post or how you identify yourself on the Services.

Analytics Partners. We use analytics services such as Google Analytics to collect and process certain analytics data. You can learn more about Google's practices by visiting <https://www.google.com/policies/privacy/partners/>.

As Required By Law and Similar Disclosures. We may access, preserve, and disclose your Information if we believe doing so is required or appropriate to: (a) comply with law enforcement requests and legal process, such as a court order or subpoena; (b) respond to your requests; or (c) protect your, our, or others' rights, property, or safety. For the avoidance of doubt, the disclosure of your Information may occur if you post any objectionable content on or through the Services.

Merger, Sale, or Other Asset Transfers. We may transfer your Information to service providers, advisors, potential transactional partners, or other third parties in connection with the consideration, negotiation, or completion of a corporate transaction in which we are acquired by or merged with another company or we sell, liquidate, or transfer all or a portion of our assets. The use of your Information following any of these events will be governed by the provisions of this Privacy Policy in effect at the time the applicable Information was collected.

Consent. We may also disclose your Information with your permission.

Data retention

We take measures to delete your Personal Information or keep it in a form that does not permit identifying you when this Information is no longer necessary for the purposes for which we process it, unless we need to retain certain Information as required by law, including to comply with tax requirements, or for as long as is reasonably necessary to meet regulatory requirements, resolve disputes, prevent fraud and abuse or enforce our terms. When determining the specific retention period, we take into account various criteria, such as the type of service provided to you, the nature and length of our relationship with you, and mandatory retention periods provided by law and the relevant statute of limitations.

Your Choices

Sharing Preferences. Certain Information may always be publicly available to others, and other Information is made publicly available to others by default, as described in this Privacy Policy.

Marketing Communications. You can unsubscribe from our promotional emails via the link provided in the emails. Even if you opt out of receiving promotional email messages from us, you will continue to receive administrative messages from us.

Your European Privacy Rights. If you are located in Europe, you have the additional rights described below:

- You may request access to the Personal Information we maintain about you, update and correct inaccuracies in your Personal Information, restrict or object to the processing of your Personal Information, have your Personal Information anonymized or deleted, as appropriate, or exercise your right to data portability to easily transfer your Personal Information to another company. In addition, you also have the right to lodge a complaint with a supervisory authority, including in your country of residence, place of work or where an incident took place.
- You have the right to not be subject to an automated decision (including profiling) and to appeal such a decision. Softmax does not engage in profiling or automated decision-making in the processing of Personal Information.

- You may withdraw any consent you previously provided to us regarding the processing of your Personal Information at any time and free of charge. We will apply your preferences going forward and this will not affect the lawfulness of the processing before you withdrew your consent.

You may exercise these rights by contacting us using the contact details as indicated in the “Contact Information” section below. Before fulfilling your request, we may ask you to provide reasonable information to verify your identity. There are exceptions and limitations to each of these rights under local laws, and that while any changes you make will be reflected in active user databases instantly or within a reasonable period of time, we may retain Personal Information for backups, archiving, prevention of fraud and abuse, analytics, satisfaction of legal obligations, or where we otherwise reasonably believe that we have a legitimate reason to do so.

Third Parties

Our Services may contain links to other websites, products, or services that we do not own or operate. We are not responsible for the privacy practices of these third parties. Please be aware that this Privacy Policy does not apply to your activities on these third-party services or any Information you disclose to these third parties. We encourage you to read their privacy policies before providing any Information to them.

Security

We make reasonable efforts to protect your Information by using physical and electronic safeguards designed to improve the security of the Information we maintain. However, because no electronic transmission or storage of Information can be entirely secure, we can make no guarantees as to the security or privacy of your Information.

Children’s Privacy

We do not knowingly collect Personal Information from children under 18 years of age. If a child wishes to participate in our Services, submissions must be made by that child’s parent or legal guardian. If you learn that a child has provided us with personal Information in violation of this Privacy Policy, then you may alert us at contact@softmax.com.

If you are a California resident under the age of 18 and you wish to remove content that you publicly posted, you may submit a request by contacting us at contact@softmax.com. Removing the public content does not ensure complete or comprehensive removal of the content or Information.

International Visitors

If you are located in Europe, we may transfer your Personal Information to third countries which

have been found to provide adequate protection by the competent authorities as appropriate, use contractual protections for the transfer of Personal Information, transfer to recipients who have adopted Binding Corporate Rules, or rely on an appropriate legal derogation. For example, our Services are hosted in the United States. We may also transfer your Personal Information from the U.S. to other countries or regions in connection with its storage and processing, fulfilling your requests, and operating the Services. To obtain a copy of the contractual safeguards we use for such transfers, you may contact us using the contact details as indicated in the “Contact Information” section below.

Update Your Information

You can update your registration Information by contacting us at contact@softmax.com.

Changes to this Privacy Policy

We will post any adjustments to the Privacy Policy on this page, and the revised version will be effective when it is posted. If we materially change the ways in which we use or disclose Personal Information previously collected from you through the Services, we will notify you through the Services, by email, or other communication.

Contact Information

Softmax, Inc. is responsible for processing your Information (a.k.a. the ‘controller’). If you have any questions, comments, or concerns about our processing activities, please email us at contact@softmax.com.

Last Updated: October 6, 2025